

|    |                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
|----|--------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                                                      | Moving party to give notice.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 9. | <b>MOULTON TATE VS. HOAG<br/>MEMORIAL HOSPITAL<br/>PREBYTERIAN<br/>2025-01515942</b> | <p><b>1. DEMURRER TO COMPLAINT</b></p> <p>Defendants Hoag Memorial Hospital Presbyterian and Sarah Love’s Demurrer to Plaintiff’s Complaint is OVERRULED.</p> <p><u>First Cause of Action for Breach of Contract</u></p> <p>“To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant’s breach and resulting damage.” (<i>Harris v. Rudin, Richman &amp; Appel</i> (1999) 74 Cal.App.4th 299, 307 [citation omitted].) “If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (<i>Ibid.</i>)</p> <p>“In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language.” (<i>Construction Protective Services, Inc. v. TIG Specialty Ins. Co.</i> (2002) 29 Cal.4th 189, 198-199 [citation omitted].)</p> <p>Defendants demur on the grounds Plaintiff failed to attach a copy of the alleged contract to the complaint or state the essential terms of the contract and the specific provisions breached.</p> <p>Plaintiff alleges she entered into a Master Service Agreement (MSA) with Defendants on 8/22/24 and a Statement of Work Amended #2 (SOW) on 11/1/24. (Compl. ¶¶ 6, 15.) Plaintiff alleges Defendants breached the MSA by failing to provide her with written notice prior to termination. (Compl. ¶ 10.) Plaintiff further alleges Defendants breached the SOW, which provided Plaintiff a weekly compensation of \$3,400 through 12/31/25. (Compl. ¶ 15.)</p> <p>As such, Plaintiff has sufficiently alleged the legal effect of the contract (e.g., requirement to provide written notice of termination and a weekly compensation of \$3,400).</p> <p>The Court OVERRULES the demurrer to the first cause of action.</p> <p><u>Second Cause of Action for Failure to Pay Overtime Wages/Misclassification under Labor Code Sections 203, 510, 1194, and 1198</u></p> <p>Plaintiff alleges:</p> |

- Despite being classified as an independent contractor, Plaintiff's relationship with Defendant Hoag was that of an employee. (Compl. ¶ 7.)
- Plaintiff was paid on a salary basis but was not an exempt employee under any of the California Wage Orders and was instead misclassified as independent contractor. (Compl. ¶ 24.)
- Defendants knowingly failed to pay Plaintiff overtime compensation for the hours she worked beyond eight hours in a workday and/or 40 hours in a workweek, as required by the California Labor Code. (Compl. ¶ 25.)

While Defendants contest Plaintiff's categorization as an employee, "[t]he determination of employee or independent-contractor status is one of fact if dependent upon the resolution of disputed evidence or inferences." (*Becerra v. McClatchy Co.* (2021) 69 Cal.App.5th 913, 946-947 [citation omitted].)

A factual determination on this issue is inappropriate on a demurrer, which tests only "the legal sufficiency of a complaint." (*JPMorgan Chase Bank, N.A. v. Ward* (2019) 33 Cal.App.5th 678, 684.)

These allegations are sufficient at the pleading stage.

The Court OVERRULES the demurrer to the second cause of action.

#### Third Cause of Action for Failure to Provide Itemized Wage Statements (Cal. Labor Code § 226)

As discussed above, Plaintiff alleges she was an employee improperly classified as an independent contractor. (Compl. ¶¶ 7, 24.)

Plaintiff further alleges:

- By failing to pay additional compensation to Plaintiff for the time she worked beyond eight hours in a workday and/or 40 hours in a workweek, Defendants, and each of them, have violated the requirement that the total hours worked and all wages earned be included in the wage statement that must be provided to Plaintiff. (Compl. ¶ 30.)

These allegations are sufficient at the pleading stage.

The Court OVERRULES the demurrer to the third cause of action.

#### Fourth Cause of Action for Age-Based Discrimination (Gov. Code §§ 12940 et seq.)

As discussed above, Plaintiff alleges she was an employee improperly classified as an independent contractor. (Compl. ¶¶ 7, 24.)

“[A] prima facie case of age discrimination arises when the employee shows that: (1) at the time of the adverse employment action, the employee was 40 years of age or older; (2) some adverse employment action was taken against the employee; (3) at the time of the adverse action the employee was satisfactorily performing his or her job; and (4) the employee was replaced in his or her position by a significantly younger person.” (*Arnold v. Dignity Health* (2020) 53 Cal.App.5th 412, 424 [citation omitted].)

Plaintiff alleges:

- (1) She was 57 at the time of her termination. (Compl. ¶ 35.)
- (2) She is and always has been an exemplary employee and received consistently positive feedback on her performance from colleagues and management. (Compl. ¶ 12).
- (3) Defendants reassigned her job duties to employees who were substantially younger than Plaintiff (Compl. ¶¶ 35, 39.)

These allegations are sufficient at the pleading stage.

The Court OVERRULES the demurrer to the fourth cause of action.

Fifth Cause of Action for Failure to Prevent Discrimination (Gov. Code §§ 12940 et seq.)

“When a plaintiff seeks to recover damages based on a claim of failure to prevent discrimination or harassment she must show three essential elements: 1) plaintiff was subjected to discrimination, harassment or retaliation; 2) defendant failed to take all reasonable steps to prevent discrimination, harassment or retaliation; and 3) this failure caused plaintiff to suffer injury, damage, loss or harm.” (*Lelaind v. City and County of San Francisco* (2008) 576 F.Supp.2d 1079, 1103 [citation omitted].) There is no claim for failure to prevent harassment or discrimination when there is no liability for harassment or discrimination. (*See Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 289.)

As discussed above, the complaint adequately pleads facts to support the age discrimination claims at the pleading stage. The complaint further alleges Defendants failed to prevent the discrimination and Plaintiff was harmed. (Compl. ¶ 43.) These allegations are sufficient at the pleading stage.

The Court OVERRULES the demurrer to the fifth cause of action.

Sixth Cause of Action for Defamation

Defendants allege Plaintiff’s claim for defamation fails as it is subject to the common interest privilege.

“[B]ecause an employer and its employees have a common interest in protecting the workplace from abuse, an employer’s statements to employees regarding the reasons for termination of another employee generally are privileged.” (*King v. United States Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 440 [citations omitted].)

“The general rule is that a privilege must be pleaded as an affirmative defense. . . . But where the existence of a privilege is revealed on the face of the complaint, it may be asserted in a demurrer.” (*Tschirky v. Superior Court* (1981) 124 Cal.App.3d 534, 538.)

Plaintiff alleges Defendant Love “made numerous false and defamatory statements about Plaintiff to her former colleagues, including that Plaintiff ‘has mental health issues,’ that she would ‘probably key my car,’ and that she ‘switched her meds lately.’” (Compl. ¶ 49.)

The Court does not find the existence of the common interest privilege is revealed on the face of the complaint based on the allegedly defamatory statements alleged by Plaintiff.

The Court OVERRULES the demurrer to the sixth cause of action.

#### Seventh Cause of Action for Wrongful Termination in Violation of Public Policy

“The elements of a cause of action for wrongful discharge in violation of public policy are “(1) an employer-employee relationship, (2) the employer terminated the plaintiff’s employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm.” (*McDoniel v. Kavry Management, LLC* (2025) 114 Cal.App.5th 949, 962-963 [citation omitted].)

Plaintiff alleges, “[t]he actual reason for Plaintiff’s termination was based upon, among other things, the fact that Plaintiff was being discriminated against based on her age.” (Compl. ¶ 66.) Plaintiff further alleges she was harmed as a result of the termination. (Compl. ¶¶ 69-71.)

As Plaintiff sufficiently alleges a cause of action for age discrimination as discussed above, Plaintiff’s cause of action for wrongful termination is also sufficiently pled.

The Court OVERRULES the demurrer to the seventh cause of action.

#### Eighth Cause of Action for Unfair Competition (Business & Professions Code §§ 17200 et seq).

The Unfair Competition Law (UCL), Business and Professions

Code section 17200 et seq., prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (*Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.* (1999) 20 Cal.4th 163, 180.)

“By proscribing ‘any unlawful’ business practice, ‘section 17200 ‘borrows’ violations of other laws and treats them as unlawful practices’ that the unfair competition law makes independently actionable.” (*Ibid.* [citations omitted].) Virtually any law or regulation can serve as predicate for a section 17200 “unlawful” violation. (*Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 681 [citation omitted].)

Defendants contend Plaintiff’s complaint “alleges nothing concerning Hoag engaging in unfair competition and does not allege that members of the public are likely to be deceived by any of Hoag’s practices.” (Dem. at 18:7-8.)

As discussed above, Plaintiff alleges she was an employee improperly classified as an independent contractor. (Compl. ¶¶ 7, 24.)

“The FEHA makes it an unlawful employment practice for an employer to engage in age discrimination. (Gov. Code, § 12940, subd. (a).) It follows that injunctive relief under the UCL is an appropriate remedy where a business has engaged in an unlawful practice of discriminating against older workers.” (*Herr v. Nestle U.S.A., Inc.* (2003) 109 Cal.App.4th 779, 789.)

“[A]n employer that practices age discrimination may have an unfair competitive edge over employers that comply with the FEHA. Therefore, an employer which engages in age discrimination in violation of the FEHA is subject to a prohibitory injunction under the UCL.” (*Id.* at p. 790.)

Plaintiff alleges Defendants “engaged in unlawful, unfair, and fraudulent business practices as described herein, including but not limited to, engaging in acts of discrimination, defamation, and wrongful termination in violation of public policy . . . .” (Compl. ¶ 49.)

As Plaintiff sufficiently alleges a cause of action for age discrimination as discussed above, Plaintiff’s cause of action for unfair competition is also sufficiently pled.

The Court OVERRULES the demurrer to the eighth cause of action.

## **2. MOTION TO STRIKE PORTIONS OF COMPLAINT**

Defendants Hoag Memorial Hospital Presbyterian and Sarah Love’s Motion to Strike Portions of Plaintiff’s Complaint is GRANTED with 20 days leave to amend.

Defendants move to strike portions of Plaintiff's complaint on the ground Plaintiff failed to plead facts sufficient for an award of punitive damages.

"To support punitive damages, the complaint asserting one of those causes of action must allege ultimate facts of the defendant's oppression, fraud, or malice." (*Spinks v. Equity Resident Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1055 [citation omitted].)

Civil Code section 3294 defines "malice" as conduct "intended by the defendant to cause injury to plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard for the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Oppression" is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (c)(2).) "Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).)

Additionally, section 3294, subdivision (b) provides: "An employer shall not be liable for damages . . . based upon acts of an employee of the employer, unless the employer . . . authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).)

Plaintiff alleges Defendants' conduct in "terminating Plaintiff because of her age, reassigning her duties to substantially younger employees, and providing her with a false reason for her termination to cover-up the true discriminatory motives was willful and malicious and in conscious disregard of Plaintiff's rights." (Compl. ¶ 39.)

As such, Plaintiff relies primarily on the underlying facts associated with her age discrimination cause of action which the Court finds do not rise to the level of malice, oppression or fraud necessary under Civil Code section 3294 to state a claim for punitive damages. Nor does the Court find Defendant Love's comments regarding Plaintiff including that she "has mental health issues," would "probably key [Love's] car," and "switched her meds lately" (Compl. ¶ 49) or Chief Marketing Officer, Ryan Chen's comments that younger supervisors were "so young" and "so great" (Compl. ¶ 10) satisfy the requisite showing.

|     |                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|-----|--------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|     |                                                                          | Accordingly, the Court GRANTS Defendants Hoag Memorial Hospital Presbyterian and Sarah Love’s Motion to Strike Portions of Plaintiff’s Complaint with 20 days leave to amend.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 11. | <b>STRUMPFER VS. KAWASAKI<br/>MOTORS CORP., U.S.A.<br/>2023-01357407</b> | <p><b>MOTION FOR SUMMARY JUDGMENT</b></p> <p>Defendant’s Motion for Summary Judgment is DENIED.</p> <p><u>Objections to Evidence:</u></p> <p>Both parties improperly object to facts rather than individual items of evidence. (See Cal. Rules of Court, Rule 3.1354.) Nonetheless, the Court will attempt to address the merits of the objections to the extent they are reasonably limited to a particular factual statement or item of evidence.</p> <p>Plaintiff’s objections to evidence (ROA 163) are sustained as to objections #1-4, (hearsay statements in police report and State Department of Parks and Recreation findings) and overruled as to the remaining objections.</p> <p>Defendant’s objections to evidence (ROA 177) are overruled.</p> <p><u>Legal Standard:</u></p> <p>At summary judgment, “A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the Plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code. Civ. Proc. § 437c(p)(2).)</p> <p>“The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that</p> |